

23STCV22181 23STCV22181

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-07-09

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Case Number: 23STCV22181 Hearing Date: July 9, 2026 Dept: 735

Chelf v. PNC Bank, et al.

Defendants PNC Bank, National Association and

Tom Lowrey's Motion for Summary Judgment, or in the alternative, Motion for Summary Adjudication

BACKGROUND

This is an employment action. On September 14, 2023, Plaintiff Timothy Chelf filed a complaint against Defendants PNC Bank, National Association and Tom Lowrey, asserting causes of action for (1) whistleblower retaliation; (2) age discrimination; (3) national origin harassment and discrimination; (4) religious harassment and discrimination; (5) failure to investigate and prevent harassment, discrimination and retaliation; (6) retaliation in violation of FEHA; (7) wrongful termination; and (8) IIED.

Plaintiff, a former Business Development Officer for Defendant PNC Bank, alleges he was constructively terminated from his position after reporting Defendant Lowry for coaching a borrower on how to alter financial statements to gain credit approval and for reporting national origin and religious harassment by Defendant Lowry. Specifically, Plaintiff alleges that following his report of Defendant Lowry's coaching, Defendant Lowry called Plaintiff a "Nazi" in a fit of rage. Plaintiff alleges that shortly thereafter, Plaintiff's position was "eliminated" and his work was given to a much younger and less experienced employee. Plaintiff also alleges he was not hired back despite applying to over 20 positions with Defendant.

EVIDENCE OBJECTIONS

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion.” (CCP § 437c(q).) Defendants’ objections to Plaintiff’s evidence are overruled.

DISCUSSION

First and Fifth Causes of Action for Whistleblower Retaliation and Retaliation in Violation of FEHA

Defendants assert that the first and fifth causes of action for whistleblower retaliation in violation of Labor Code § 1102.5 and retaliation in violation of FEHA fail because Plaintiff cannot establish a causal connection between any protected activity and any adverse employment action. To establish a prima facie case, Plaintiff’s whistleblower and FEHA retaliation claims require evidence of a causal link between the protected activity and PNC’s decision to eliminate Plaintiff’s job position and to not hire him for other positions. Defendants present evidence purportedly showing that none of the decision makers regarding the elimination of Plaintiff’s position or regarding Plaintiff’s applications for other positions were aware of Plaintiff’s complaints about Lowry’s alleged coaching of clients or his “Nazi” statements.

Defendants also argue that Plaintiff’s position was eliminated for legitimate business reasons. Defendants present evidence showing the BDO IV position was created specifically for Plaintiff when PNC acquired BBVA. PNC hoped that the new position would be beneficial, and that Plaintiff would be successful in the position. However, Defendants assert it became apparent that Plaintiff was having trouble in the position and did not have the background and experience necessary to support the group. Plaintiff had not closed any deals, and Hayes was receiving negative feedback regarding Plaintiff. In June 2022, when Hayes and Tyler reviewed the structure of the group roughly eleven months after the completion of the acquisition, they determined the BDO IV role was simply not needed to support the Business Credit New Business Group, and the duties could be absorbed by the remaining BDO IIIs.

In opposition, Plaintiff disputes that decision makers did not know about his

complaints against Defendant Lowry. Plaintiff presents evidence showing he told his supervisor, Tom Haynes, about the "Nazi" incident which occurred in April 2022. Plaintiff's position was eliminated in June of 2022. Plaintiff also presents evidence in the form of a performance review showing he was performing his job competently. Additionally, Plaintiff presents evidence showing his job was not to "close" deals, but rather to bring in potential deals and then refer them to a different department to "close" them. Finally, Plaintiff asserts after his position was eliminated, his job duties were assigned to a younger, less experienced employee. The foregoing suffices to create a triable issue of fact as to retaliation.

The

Court denies Defendants' motion for summary judgment. The Court denies Defendants' motion for summary adjudication of the first and fifth causes of action.

Third

Cause of Action for National Origin Harassment and Discrimination and Fourth Cause of Action for Religious Harassment and Discrimination

The Fair Employment and Housing Act

prohibition on harassment states: "It is an unlawful employment practice. . . . [f]or an employer, labor organization, employment agency, apprenticeship training program or any training program leading to employment, or any other person, because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or military veteran status, to harass an employee, an applicant, an unpaid intern or volunteer, or person providing services pursuant to a contract." (Govt. Code § 12940(j)(1).) A hostile work environment is a recognized form of harassment. To establish a hostile work environment, harassment must be so severe or pervasive as to alter the conditions of the victim's employment and create an abusive working environment based on the protected characteristic.

Defendants argue that the claims for

harassment fail because they were not severe or pervasive. Here, Plaintiff claims that Lowrey (1) referred to him as "Nazi" during a single altercation, (2) put his chest on Plaintiff's shoulder, and (3) "stared" or "peered" at him in an intimidating manner when he walked past. Defendants

assert that even if the Court assumes the truth of Plaintiff's various inconsistent versions of the facts, Plaintiff cannot establish that the alleged conduct by Lowrey was sufficiently severe or pervasive to constitute actionable harassment as a matter of law. The Court disagrees. FEHA has recently been amended to state that "[a] single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Gov. Code § 12923(b).) A triable issue of fact exists as to harassment.

The Court denies Defendants' motion for summary adjudication of the third and fourth causes of action.

Second Cause of Action for Age Discrimination

Defendants assert that the second cause of action for age discrimination fails because Plaintiff cannot show that Plaintiff's position was eliminated due to his age. Defendants present evidence showing that the majority of employees who absorbed Plaintiff's job duties are, respectively, less than three years younger, one year younger, and six years older than Plaintiff. Defendants also present evidence showing that the decision-makers who recommended that Plaintiff's position be eliminated were in the same protected class as Plaintiff.

In opposition, Plaintiff presents evidence showing he was performing his job duties competently and that upon his termination, his supervisor told him that Victor Cortez would take over his role and referred to Cortez as a "fresh face." Plaintiff presents evidence showing Mr. Cortez was in his 30's and did not have the experience or training that plaintiff had. This is sufficient to create a triable issue of fact as to age discrimination.

The Court denies Defendants' motion for summary adjudication of the second cause of action.

Fifth

Cause of Action for Failure to Prevent Discrimination, Retaliation and Harassment and Seventh Causes of Action for Wrongful Termination

Defendants

assert the fifth and seventh causes of action fail because they are derivative of the causes of action discussed above. As stated, Plaintiff has established a triable issue of fact as to those claims. The Court denies the motion for summary adjudication of the fifth and seventh causes of action.

Eighth

Cause of Action for IIED

The elements of an intentional infliction of emotional distress cause of action are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. To satisfy the element of extreme and outrageous conduct, defendant's conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.

Defendants argue that they are entitled to judgment on the eighth cause of action because Plaintiff cannot show Defendants engaged in extreme or outrageous conduct. In opposition, Plaintiff asserts that the triable issues of fact as to discrimination, harassment and retaliation support the claim for IIED. The Court agrees. The Court denies Defendants' motion for summary adjudication of the eighth cause of action.

Punitive Damages

Defendants assert Plaintiff cannot recover punitive damages because Plaintiff has no evidence that any of the individuals allegedly involved in the wrongful conduct were officers, directors, or managing agents. In opposition, Plaintiff presents evidence showing the decision makers' job descriptions show that they "manage the managers," they set policy and they are in charge of the leaders. This is sufficient to establish a triable issue of fact as to whether the decision makers were officers, directors, or managing agents.

The

Court denies the motion for summary adjudication as to punitive damages.

CONCLUSION

The Court denies Defendants' motion for summary judgment, or in the alternative, motion for summary adjudication.

Defendants to give notice.